

CHAPTER 25

An Act to validate payments made by the War Damage Commission before the passing of this Act in respect of the clearance of war-damaged land, and to make further provision for such payments by the Commission.
[13th April, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Payments for
clearance of
war-damaged
sites.

6 & 7 Geo. 6.
c. 21.

1.—(1) Direction No. 11 made by the Treasury under subsection (1) of section twenty of the War Damage Act, 1943 (under which it is the duty of the Treasury to give directions for securing that the provisions of Part I of that Act relating to payments for war damage shall be executed in conformity with the public interest), which Direction provided for payments of cost of works in respect of works of clearance of developed hereditaments which had sustained war damage involving total loss, is hereby revoked, but any payment made by the Commission before the passing of this Act, being a payment which the Commission purported to make in consequence of that Direction, shall be deemed to have been duly made.

(2) Subject to the provisions of this section, where a developed hereditament has sustained war damage involving total loss, the Commission may, subject to any condition which appears to the Commission requisite as to adjusting the amount of any value payment in respect of the hereditament, make, in respect of the carrying out on the hereditament (whether before or after the passing of this Act) of any work to which this subsection applies, a payment to the person by whom the cost of carrying out the work is incurred of an amount equal to the proper cost of the work.

(3) The foregoing subsection applies to work for clearing from the hereditament the remains of buildings or works, except that it does not apply to work for clearing—

(a) remains of such a nature and in such a condition that in the opinion of the Commission they could (whether or not the hereditament has been or is to be reinstated) reasonably have been used in reinstating it in the form in which it existed before the occurrence of the war damage; or

(b) other remains, where—

(i) the hereditament has been reinstated or re-developed, or the Commission are satisfied that a particular project for reinstatement or redevelopment of the hereditament is to be carried out, and in the opinion of the Commission it was or will be reasonably practicable to carry out the reinstatement or redevelopment without clearing the remains,

(ii) in a case not falling within the foregoing sub-paragraph, in the opinion of the Commission it is reasonably practicable to reinstate or redevelop the hereditament without clearing the remains.

(4) Subsection (2) of this section shall apply where under subsection (1) of section sixteen of the War Damage Act, 1943 (which relates to hereditaments damaged more than once) the Commission have determined to make a single value payment in respect of the war damage to a hereditament as it applies where a developed hereditament has sustained war damage involving total loss.

(5) No payment shall be made under this section for work carried out on the hereditament or a part of it by, or by a person claiming under, any body authorised to acquire the hereditament or that part compulsorily if, after the occurrence of the damage but before the work was carried out and before the thirtieth day of October, nineteen hundred and fifty-eight, the said body has served, or is deemed by virtue of any enactment to have served, any notice to treat for the acquisition of land comprised in the hereditament or part or has entered into any agreement for the acquisition of such land.

(6) Any sums required by virtue of this Act for payments by the Commission shall, in accordance with section two of the Miscellaneous Financial Provisions Act, 1946, be charged on 9 & 10 Geo. 6.
and issued out of the Consolidated Fund. c. 40.

2.—(1) This Act may be cited as the War Damage (Clearance Payments) Act, 1960. Short title and construction.

(2) This Act shall be construed as one with Part I of the War Damage Act, 1943.
